



STANDING ORDER NO. L&O/48/2022

GUIDELINES FOR ORGANIZING PROTESTS OR DEMONSTRATIONS AT OR NEAR CENTRAL VISTA, INCLUDING JANTAR MANTAR AND BOAT CLUB

1. BACKGROUND

The permanent residents of Jantar Mantar Road, New Delhi had filed an O.A. No. 63/2016 seeking relief from the Hon'ble National Green Tribunal and for passing appropriate orders, as Jantar Mantar had become a ground for organizing protests by various categories of groups both political and non-political. It was also averred that the manner of demonstrations and the occupations of the area are causing noise and air pollution resulting in insurmountable and untold miseries to the residents and adversely affecting the health of the residents and their children.

The Hon'ble NGT, after hearing the matter in the Original Application, directed the respondents:-

- i. To immediately stop all the activities of dharna, protests, agitations, assembling of people, public speeches, using loud speakers, etc. at Jantar Mantar Road.
- ii To remove all makeshift/temporary structures, loud speakers and public address system from the said stretch of Jantar Mantar Road.
- iii To remove the garbage/waste lying on the stretch of Jantar Mantar Road and clear the entire area, and
- iv To shift the protestors, agitators and the people holding dharnas to the alternative site at Ram Leela Maidan, Ajmeri Gate, forthwith.

The order of the Hon'ble NGT was subsequently challenged vide Civil Appeal No. 862, 863 & 864 of 2018, on the ground that these directions violate the fundamental right of the appellants.

While disposing of W.P. (C) No. 1153 of 2017 and the other connected Civil Appeals No. 862, 863 and 864 of 2018, the Hon'ble Supreme Court, vide its order dated 23-07-2018, directed the Commissioner of Police, New Delhi, to frame detailed guidelines in consultation with other concerned agencies, and to devise a proper mechanism for limited use of the area for such purposes but to ensure that demonstrations, etc. are regulated in such a manner that these do not cause any disturbance to the residents of Jantar Mantar Road or the offices situated there. The Hon'ble Supreme Court further clarified that a provision can be made for taking requisite prior permission from the Police for holding such demonstrations by a particular group and while examining such proposals, the parameters can be laid down which shall be looked into in order to decide whether the permission is to be granted or not. Accordingly, all concerned agencies including Ministry of Home Affairs, Govt. of India, NDMC, Resident Welfare Associations Jantar Mantar Road were consulted before framing the guidelines as per the directions of the Hon'ble Apex Court.

The guidelines, as enumerated hereafter, are being issued in conformity with the letter and spirit of the judgment of the Hon'ble Supreme Court of India.

2. **GUIDELINES FOR ORGANIZING PROTESTS AT JANTAR MANTAR**

The spot for protests has been identified at Jantar Mantar on the principle of minimum disturbance to residents, traffic movement and adequate space for protesters for demonstration in a regulated manner as shaded in the map at **Annexure-A** and to ensure that traffic is not stopped on Jantar Mantar Road, no gates of offices or residences are blocked and no arterial roads are affected.

Before the competent authority is approached, the Civic and other agencies shall ensure that the following measures/provisions are completed at the site of protest:-

- i. Provide "No Objection Certificate" only after compliance of all guidelines dealt with hereinafter.
- ii. Provide and oversee adequate arrangements for drinking water and First Aid/Medical Aid.
- iii. Provide and maintain adequate restroom/toilet facilities at site of protest and place of parking, and

- iv. Undertake cleaning and sanitizing work of identified area before the protest.

3. PERMISSION FROM COMPETENT AUTHORITY

The order of the Hon'ble Supreme Court directs that such public meetings, demonstrations etc. at Jantar Mantar would not be allowed without the written permission from Police. In compliance thereof, the following shall be ensured:-

- i. Application addressed to DCP/New Delhi District (NDD) for grant of permission for all protests must be submitted at least 10 days in advance, excluding the day of the event, at the HAX Branch of DCP/NDD Office. Application submitted less than 10 days before the event may also be considered depending on the availability of the space at Jantar Mantar and subject to the condition that sufficient time is available for arrangements.
- ii. Permission will be granted on 'first-come-first-serve' basis and will be subject to assessment by Special Branch, Traffic Police and New Delhi District Police.
- iii. DCP/New Delhi District shall examine the request and take a decision as to whether the proposed demonstration, dharna, public meeting etc. shall be allowed or not, keeping in view its likely effect viz. whether it would cause any obstruction to traffic or danger to human safety or disturbance to public tranquility etc. The request will be considered and then allowed or rejected keeping in view the aforesaid considerations.
- iv. Permission or rejection shall be decided taking into consideration any guidelines or rules in force, imposed by any statutory Authority/Body/Commission/Committee such as Delhi Disaster Management Authority, Delhi Pollution Control Committee etc.
- v. DCP/New Delhi District will have the authority to revoke the permission in case of unforeseen and sudden developments such as VIP security requirements or any other intelligence input, and the reasons for revocation shall be duly recorded and conveyed to the organizer(s).
- vi. The decision of DCP/New Delhi District shall be final and binding on the organizer(s) on all matters concerning protest or demonstration.

4. VEHICLE ENTRY PARKING FOR PROTESTERS

The following conditions shall apply regarding vehicles and parking for protestors at Jantar Mantar:-

- i. Maximum of 25 buses of the protesters will be permitted in the jurisdiction of New Delhi District.
- ii. Parking of buses/permitted vehicles will be allowed at Jai Singh Road at the designated place mentioned in the permission only or at any alternative place. Organizers may be directed that no vehicles should remain un-attended during protest or after protest. It should be clearly mentioned in the permission.
- iii. No tractors, trolleys, bullock-carts, cycle-rickshaws, or hand-driven carts shall be allowed.
- iv. No animals like horses, elephants, camels, cattle etc. would be allowed in a rally or dharna.

5. LIMITING TOTAL NUMBER OF PROTESTERS

- i. The total number of protesters at Jantar Mantar shall not exceed 1000. Beyond this threshold, venue of the protest can be at Ramlila Ground, which can accommodate up to 50,000 persons.
- ii. Multiple protests in a day be allowed subject to availability of space and appropriate time gap but the limit of the total of 1000 persons shall be adhered to.
- iii. Any organizer(s) bringing protesters in excess numbers than those stated in the undertaking shall be seen as a deliberate attempt to violate the administrative directions of the Competent Authority. Organizer(s) and their protest will be video-graphed and their non-compliance and non-cooperation shall be considered not only for legal action deemed appropriate but will also be kept in record to decide permission for their future protests.

6. NO MARCH TOWARDS AND FROM THE IDENTIFIED SPOT AT JANTAR MANTAR

- i. No March towards the identified spot at Jantar Mantar will be allowed. Organizer(s) shall ensure that the protestors or

demonstrators congregate as well as disperse peacefully from the identified spot only.

- ii. The protestors shall move from the parking area to the identified protest place and back in an orderly manner under the supervision of local police.

In exceptional circumstances, and only after prior permission from New Delhi District Police, protesters can take out a symbolic march within a small stretch from the identified place up to the T-Point of Jantar Mantar Road/ Tolstoy Marg. It should, in no way, obstruct traffic on Jantar Mantar Road.

7. USE OF LOUDSPEAKERS

- i. No loudspeaker or public address system shall be used at the venue of the rally or dharna at Jantar Mantar without specific permission from the DCP/New Delhi District.
- ii. In case permission is granted by the Competent Authority, loudspeakers shall be used only between 10.00 AM to 5.00 PM as per the guidelines, in the Noise Pollution (Regulation and Control) Rules, 2000 framed under the Environment (Protection) Act, 1986 and in compliance of the Hon'ble Supreme Court orders.
- iii. Use of loudspeakers shall be allowed in accordance with the Standing Order No. L&O/10/2022.
- iv. No vehicle mounted with PA system for addressing the protesters will be permitted at the place of protest.

8. RESTRICTIONS FOR PITCHING TENTS OR TEMPORARY STRUCTURES

The protesters shall not be allowed to pitch tents or temporary structures at Jantar Mantar even for a temporary period.

9. TIME RESTRICTION

The protest shall be organized between 10.00 AM to 5.00 PM. Also, no program shall be permitted to be organized for more than a day continuously.

10. PROHIBITIONS

The following activities shall be strictly prohibited during any protest/dharna at Jantar Mantar:-

- i. The participants in the dharna shall not carry lathis, firearms, spears, swords or any other articles which can be used as a weapon of offence.
- ii. The participants may carry flags and banners with sticks but purely for display purposes. It should, however, be ensured by the organizer(s) that the dimension of flags or banners will not be greater than 9 ft X 6ft. and no stick used in the banners shall be more than 2 ft. in length.
- iii. No participant shall make any provocative speech or use any language likely to inflame passions of the crowd or incite them or promote enmity between different groups on ground of religion, race, sex, place or birth, residence, language etc., or act in any manner which is prejudicial to the maintenance of harmony between such groups or may disturb public peace & tranquility.
- iv. No participant shall act in any manner which may result in damage to public property, assault on government servant, arson, etc.
- v. No burning of any documents, books and effigy, cooking, littering, throwing of placards, banners and plastic waste is permitted as it will be in violation of the judgment of the Hon'ble NGT and the Hon'ble Apex Court.

11. RESPONSIBILITY OF THE ORGANIZER(S)

The organizer(s) shall:-

- i. Abide by all the guidelines, directions, orders and the extant laws.
- ii. Work in coordination with the public authority.
- iii. Co-operate with the authorities under all circumstances.
- iv. Sign an undertaking as given at **Annexure-B** for Jantar Mantar and **Annexure-D** for Boat club that he or she and his or her supporters shall follow all the Do's & Don'ts

mentioned in this Standing Order in letter and spirit failing which he or she along with other protesters may be prosecuted under the law.

12. POST-EVENT MEASURES

After the event, all concerned government agencies will ensure the following measures:-

- i. Undertake cleaning work and restore normalcy not later than 12 hours after the event.
- ii. Recover compensation towards damage to environment, if any, from the organizer(s), as per conditions of permission.
- iii. Ensure that no violation of law and order as also of norms for protection of environment has taken place.
- iv. In case of any violation as above, necessary legal action will be initiated.

13. GUIDELINES FOR ORGANIZING PROGRAMMES AT BOAT CLUB

The Hon'ble Supreme Court in its judgement directed that "the Commissioner of Police, New Delhi, and other official respondents can frame proper guidelines laying down the parameters under which permission can be granted in the Boat Club area. It can be a very restrictive and limited use, because of the sensitivities pointed out by the respondents and also keeping in mind that Ramlila Maidan is available and Jantar Mantar Road in a regulated manner shall be available as well. Thus, the proposed guidelines may include the provisions for regulating the numbers of persons intending to participate in such demonstrations, prescribing the minimum distance from the Parliament House, North and South Blocks, Supreme Court, residences of dignitaries etc. within which no such demonstrations would be allowed, imposing restrictions on certain routes where normally the Prime Minister, Central Ministers, Judges etc. pass through; not permitting any demonstrations when foreign dignitaries are visiting a particular place or pass through the particular route; not allowing firearms, lathis, spears, swords, etc. to be carried by demonstrators; not allowing them to bring animals or pitch tents or stay overnight; prescribing time limits for such demonstrations; and placing restrictions on such demonstrations, etc. during peak traffic hours."

Adhering to the directions of the Hon'ble Supreme Court of India that in respect of Boat Club as well the authorities can formulate proper and requisite guidelines, a suitable spot was identified by the competent authority which has been shaded in the map at Annexure-C, and the following guidelines shall be applicable in this area:-

- i. The programmes involving only school children duly escorted by their teachers or other peace loving groups for social, traffic & educational awareness will be allowed in the area of Boat Club subject to parameters of permissible limit of expected gathering, time frame and compliance of lawful directions.
- ii. Candle vigil by school children for social, traffic and educational awareness may be allowed only in exceptional circumstances after a thorough assessment by the Special Branch, Traffic Police and New Delhi District Police, whose decision shall be final.
- iii. The gathering should not exceed 100 persons and participation should be symbolic highlighting social, educational, health-related or environmental causes.
- iv. The timing of the gathering will be between 11.00 AM to 4.00 PM. However, in exceptional circumstances only, it can be extended up to 6.00 PM.
- v. No Permission will be granted during Parliament Session, VIP movement, Republic Day Celebrations, Beating the Retreat arrangement, Independence Day Celebration, important government functions, festival days and New Year celebration.
- vi. No participant shall carry firearms, lathis, spears, swords, etc. or bring animals or pitch tents or stay overnight.
- vii. DCP/New Delhi District will have the power to revoke the permission in case of unforeseen and sudden developments such as VIP movement or any other intelligence input.

14. GUIDELINES FOR ORGANIZING PROTEST/DEMONSTRATION PROGRAMS AT OTHER PLACES OF CENTRAL VISTA

- i. Protest/demonstration programs will not be allowed at any other site of Central Vista including India Gate, C-Hexagon,

Man Singh Road, Janpath, Rajpath and lawns along the Rajpath.

- ii. Only educational or social programs and Governmental Programs may be allowed.

15. SUPERSESSION CLAUSE

This Standing Order supersedes the previous Standing Order No.10/2018 issued vide No.2451-2600/Record Branch/PHQ dated 22.11.2018.

16. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

Rakesh Asthana

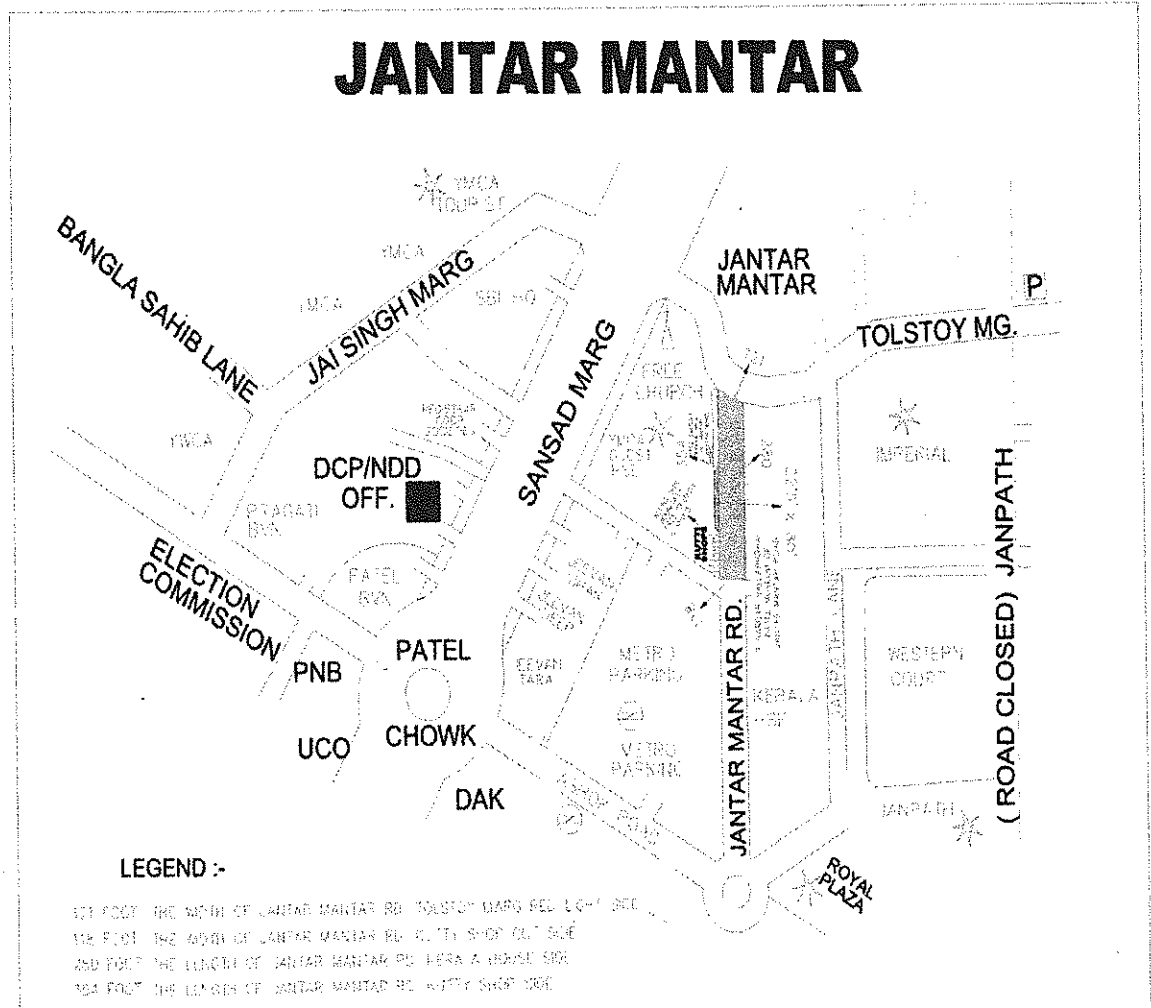
(RAKESH ASTHANA)
COMMISSIONER OF POLICE:

DELHI. 28.04.2022

No. 1930/-19450 /Record Branch/PHQ dated Delhi, the 28/04/22

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.



ANNEXURE – B

UNDERTAKING BY THE ORGANIZER FOR JANTAR MANTAR

Date of Programme _____
Venue of Dharna/Demonstration _____
Time w.e.f. _____ Hours to _____ Hours
No. of Participants: _____
No. of Volunteers: _____

I, _____ (Name & designation of the Organizer) of the _____ (Name of the Organization) do hereby undertake that I have been authorized by the organization as representative to organize the dharna/demonstration to be held on _____. I undertake that I shall abide by the following terms & conditions of Standing Order No. 10/2022 framed on the guidelines laid down by the Hon'ble Supreme Court of India, in Writ Petition (Criminal) No. 1153 of 2017, for conducting the above programme:-

1. I shall take "No Objection Certificate" from the land owning authority with regard to holding dharna/meeting etc. and the copy of the same is enclosed herewith.
2. I shall carry the permission granted in original to be shown to any police officer on duty on demand.
3. I shall depute a responsible person with whom the police can liaise. _____ (Name, designation and telephone number of the liaison person deputed by the organizer.)
4. I shall make adequate arrangements for drinking water (by providing tankers) and First Aid/Medical Aid in consultation with the civic/local bodies at the site and also during the dharna/demonstration.

5. I, and other organizers shall ensure that the dharna/demonstration will be in an orderly manner and not cause impediment to the normal flow of traffic and also follow the parking and traffic rules.
6. I, and others shall keep the limit of gathering of participants in dharna/demonstration upto 1000 only.
7. I, and other organizers shall ensure that the sufficient number of volunteers shall be deployed at & around the venue to assist the police and also provided the list of volunteers with contact details to the police in advance.
8. I, and other organizers shall ensure that dharna/demonstration/ meeting shall only be held at prescribed place/venue.
9. I, and other organizers shall ensure that the dharna/demonstration will be held in prescribed time period i.e. 10 AM to 05 PM.
10. I, and other organizers shall not use the stick for flags/banners etc. more than 2 feet in length. The dimension of flags/banners shall be 9 ft. x 6 ft. or smaller. The participants may carry flags, banners etc. on sticks purely for display purposes.
11. I, and other organizers shall ensure that the participants in the dharna/demonstration will not carry lathis, firearms, spears, swords and other articles which likely to be used as a weapon of offence. Besides, the carrying of imitation firearms, resembling sten-gun, SAF, Carbine or AK-47, pistol, rifle or any other firearm will also not be allowed which may cause danger to human life or safety or disturbance of public tranquility or a riot.
12. I, and other organizers shall ensure that no participant shall make provocative speeches or use language calculated or likely to inflame passions of the crowd or incite them or promote enmity between different groups or ground of religion, race, place or birth, residence language etc. or act in any manner which is prejudicial to the maintenance of harmony between such groups or disturb the public tranquility.
13. I, and other organizers shall ensure that the participants of the dharna/demonstration shall immediately comply with all lawful directions given to them by the Commissioner of Police, Delhi or any other police officer on duty at any stage of the rally or dharna/demonstration.

14. I, and other organizers shall ensure that no participants shall act in a manner as to result in damage to public property, assault on Govt. servant or obstruction duty of Govt. servant, arson, etc. or any other thing which is in transgression of law.
15. I, and other participants shall ensure that no participant shall destroy, damage or defile any place of worship or any object held sacred by any class of persons with the intention of thereby insulting any religion or any class of persons.
16. I, and other organizers shall not move in the shape of march from the prescribed place of dharna/demonstration except from parking to the prescribed place of dharna/demonstration or as symbolic march duly permitted by the District Police. During this I & other organizers shall abide the instructions /directions of the police.
17. I, and other organizers shall not burn any kind of documents, books and effigy, cooking, littering, throwing of placards, banners and plastic waste be permitted at the venue.
18. I, and other organizers shall ensure that no loudspeaker or public address system shall be used at the venue of the dharna/demonstration without specific permission from the Addl. CP/DCP of District and loudspeakers shall be used only between 10 AM to 05 PM.
19. I, and other organizers shall not pitch tents/shamiana or temporary structure which can be used for the purpose of speech, organizing dharna/meetings or place of abode for temporary period.
20. I, and other organizers shall ensure that no vehicle including tractors, trolleys, bullock-carts, cycle-rickshaws, hand driven carts or animals like horses, elephants, camels, etc. will be brought in the dharna/demonstration.
21. I shall be responsible to keep the followers under control, failing which I along with others shall be prosecuted under the existing provisions of law.

22. I, and other shall abide the guidelines of undertaking and co-operate the police in all circumstances.

Date _____

Place _____

(Signature)

(Name in CAPITAL LETTERS)

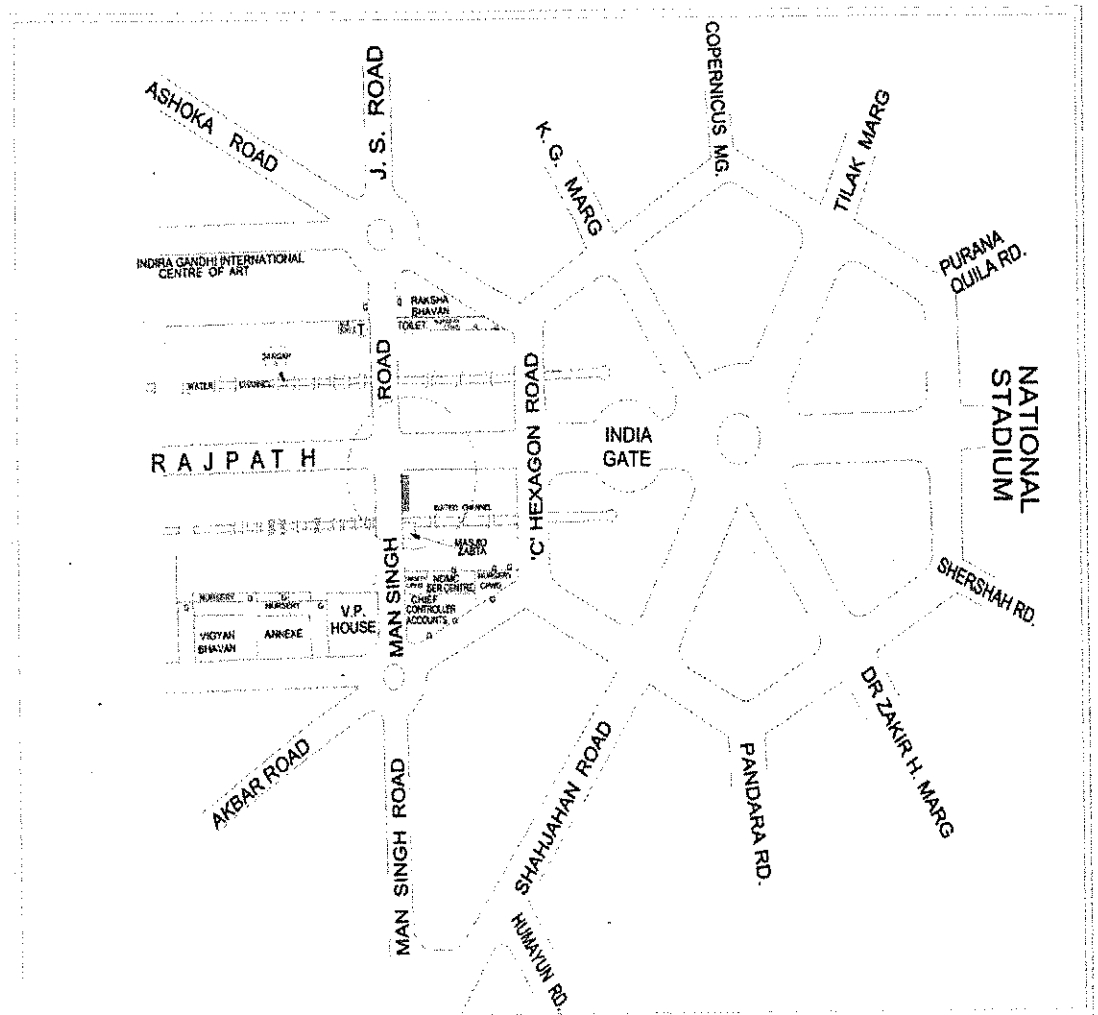
(Designation)

(Name of the Organisation)

Mob. No. _____

Any other Telephone No. _____

ANNEXURE-C



ANNEXURE - D

UNDERTAKING BY THE ORGANIZER FOR BOAT CLUB

Date of Programme _____
Venue of programme/candle vigil _____
Time w.e.f. _____ Hours to _____ Hours
No. of Participants: _____
No. of Volunteers: _____

I, _____ (Name & designation of the Organizer) of the _____ (Name of the Organization) do hereby undertake that I have been authorized by the organization as representative to organize the programme/candle vigil to be held on _____. I undertake that I shall abide by the following terms & conditions of Standing Order No.10/2022 framed on the guidelines laid down by the Hon'ble Supreme Court of India, in Writ Petition (Criminal) No. 1153 of 2017, for conducting the above programme:-

1. I shall take permission from the Police Authority with regard to holding programme/candle vigil and the copy of the same is enclosed herewith.
2. I shall carry the permission granted in original to be shown to any police officer on duty on demand.
3. I shall depute a responsible person with whom the police can liaise. _____ (Name, designation and telephone number of the liaison person deputed by the organizer.)
4. I, and other organizers shall ensure that the programme/candle vigil will be in an orderly manner and not cause impediment to the normal flow of traffic and also follow the parking and traffic rules.

5. I, and others shall keep the limit of gathering of participants in programme/candle vigil upto 100 only.
6. I, and other organizers shall ensure that the sufficient number of volunteers shall be deployed at & around the venue to assist the police and also provided the list of volunteers with contact details to the police in advance.
7. I, and other organizers shall ensure that programme/candle vigil shall only be held at prescribed place/venue.
8. I, and other organizers shall ensure that the programme/candle vigil will be held in prescribed time period i.e. 11 AM to 04 PM or the time prescribed by the Police.
9. I, and other organizers shall ensure that the participants in the programme/candle vigil will not carry lathis, firearms, spears, swords and other articles which likely to be used as a weapon of offence. Besides, the carrying of imitation firearms, resembling sten-gun, SAF, Carbine or AK-47, pistol, rifle or any other firearm will also not be allowed which may cause danger to human life or safety or disturbance of public tranquility or a riot.
10. I, and other organizers shall ensure that no participant shall make provocative speeches or use language calculated or likely to inflame passions of the crowd or incite them or promote enmity between different groups or ground of religion, race, place or birth, residence language etc. or act in any manner which is prejudicial to the maintenance of harmony between such groups or disturb the public tranquility.
11. I, and other organizers shall ensure that the participants of the programme/candle vigil shall immediately comply with all lawful directions given to them by the Commissioner of Police, Delhi or any other police officer on duty at any stage of the programme/candle vigil.
12. I, and other organizers shall ensure that no participants shall act in a manner as to result in damage to public property, assault on Govt. servant or obstruction duty of Govt. servant, arson, etc. or any other thing which is in transgression of law.
13. I, and other organizers shall not burn any kind of documents, books and effigy, cooking, littering, throwing of placards, banners and plastic waste be permitted at the venue.

14. I, and other organizers shall ensure that no loudspeaker or public address system shall be used at the venue.
15. I, and other organizers shall not pitch tents/ shamiana or temporary structure which can be used for the purpose of speech, organizing programme/candle vigil or place of abode for temporary period.
16. I, and other organizers shall ensure that no vehicle or animals like horses, elephants, camels, etc. will be brought in the programme/candle vigil.
17. I shall be responsible to keep the followers under control, failing which I along with others shall be prosecuted under the existing provisions of law.
18. I, and other shall abide the guidelines of undertaking and co-operate the police in all circumstances.

Date _____

Place _____

(Signature)

(Name in CAPITAL LETTERS)

(Designation)

(Name of the Organization)

Mob. No. _____

Any other Telephone No. _____